



Title: Use of School Buses
Code: EEAD
Book: WJCC Policy Manual
Section E: Support Services

Purpose

The school board recognizes that school buses are public assets and, when not used for their primary use, may be used in a manner that supports community needs and maximizes the efficient use of public resources. This policy establishes guidelines for such use consistent with the law and fiscal principles.

Student Transportation

Division school buses are primarily used for the transportation of students to and from school during regular school hours, including for specialty programs, and for school-sponsored activities.

Extracurricular Activities

School buses may be used for other purposes when not needed for student transportation purposes with approval of the superintendent or superintendent's designee in accordance with division regulations pertaining to such use. When student transportation is provided for field trips and other programs, the school board may accept contributions for such transportation.

Authorized Agreements

The school board may enter into agreements with nonpublic schools within the division to provide student transportation to and from school and for school field trips in accordance with division regulations.

The school board may also enter into agreements with the following entities, as described in Va. Code § 22.1-182:

- a third-party logistics company;
- the governing body of a county, city, or town in the school division;
- any state agency; and
- any federal agency identified in statute.

Such use must be for a public purpose or other community use and is subject to the following limitations and requirements:

- Third-party logistics companies cannot use the school buses to provide transportation of passengers for compensation or for residential delivery of products for compensation;
- Each agreement must provide for reimbursing the school board in full for the proportionate share of all costs, both fixed and variable, incurred by the school board attributable to the use of such buses pursuant to the agreement;
- Each agreement must require the third-party logistics company, appropriating body, or agency to supply insurance on the school bus that meets the minimum requirements in Va. Code § 22.1-190, or, in the case of a governing body, the agreement must require the governing body to

reimburse the school board for the proportionate share of any insurance costs, both fixed and variable, incurred from the use of the school buses per the agreement; and

- The third-party logistics company, appropriating body, or state or federal agency, shall indemnify and hold harmless the school board from any and all liability of by virtue of use of such buses pursuant to an agreement.

- **Adopted:** _____

- **Revised:** _____

- **Legal References:** _____

Code of Virginia, 1950, as amended §§ 22.1-176, 22.1-176.1, 22.1-182, 22.1-190.

Cross References: _____

EEAB, School Bus Scheduling and Routing

EEAC, School Vehicle Safety Program

IICA, Field Trips



Title: Use of School Buses
Code: EEAD
Book: WJCC Policy Manual
Section E: Support Services

Purpose

The school board recognizes that school buses are public assets and, when not used for their primary use, may be used in a manner that supports community needs and maximizes the efficient use of public resources. This policy establishes guidelines for such use consistent with the law and fiscal principles.

Student Transportation

Division school buses are primarily used for the transportation of students to and from school during regular school hours, including for specialty programs, and for school-sponsored activities.

Extracurricular Activities

School buses may be used for other purposes when not needed for student transportation purposes with approval of the superintendent or superintendent's designee in accordance with division regulations pertaining to such use. When student transportation is provided for field trips and other programs, the school board may accept contributions for such transportation.

Authorized Agreements

The school board may enter into agreements with nonpublic schools within the division to provide student transportation to and from school and for school field trips in accordance with division regulations.

The school board may also enter into agreements with the following entities, as described in Va. Code § 22.1-182:

- a third-party logistics company;
- the governing body of a county, city, or town in the school division;
- any state agency; and
- any federal agency identified in statute.

Such use must be for a public purpose or other community use and is subject to the following limitations and requirements:

- Third-party logistics companies cannot use the school buses to provide transportation of passengers for compensation or for residential delivery of products for compensation;
- Each agreement must provide for reimbursing the school board in full for the proportionate share of all costs, both fixed and variable, incurred by the school board attributable to the use of such buses pursuant to the agreement;
- Each agreement must require the third-party logistics company, appropriating body, or agency to supply insurance on the school bus that meets the minimum requirements in Va. Code § 22.1-190, or, in the case of a governing body, the agreement must require the governing body to

reimburse the school board for the proportionate share of any insurance costs, both fixed and variable, incurred from the use of the school buses per the agreement; and

- The third-party logistics company, appropriating body, or state or federal agency, shall indemnify and hold harmless the school board from any and all liability of by virtue of use of such buses pursuant to an agreement.

Adopted:

Revised:

Legal References:

Code of Virginia, 1950, as amended §§ 22.1-176, 22.1-176.1, 22.1-182, 22.1-190.

Cross References:

EEAB, School Bus Scheduling and Routing

EEAC, School Vehicle Safety Program

IICA, Field Trips

USE OF SCHOOL BUSES

Purpose

The School Board recognizes that school buses are public assets and, when not used for their primary use, may be used in a manner that supports community needs and maximizes the efficient use of public resources. This policy establishes guidelines for such use consistent with the law and fiscal principles.

Student Transportation

Division school buses are primarily used for the transportation of students to and from school during regular school hours, including for specialty programs, and for school-sponsored activities.

Extracurricular Activities

School buses may be used for other purposes when not needed for student transportation purposes with approval of the Superintendent or Superintendent's designee in accordance with division regulations pertaining to such use. When student transportation is provided for field trips and other programs, the School Board may accept contributions for such transportation.¹

Authorized Agreements

The School Board may enter into agreements with nonpublic schools within the division to provide student transportation to and from school and for school field trips in accordance with division regulations.²

The School Board may also enter into agreements with the following entities, as described in Va. Code § 22.1-182:

- a third-party logistics company;
- the governing body of a county, city, or town in the school division;
- any state agency; **and**
- any federal agency identified in statute.

FOOTNOTES ARE FOR REFERENCE ONLY AND SHOULD BE REMOVED FROM THE FINAL POLICY.

¹ The School Board may remove the last sentence of this paragraph if they do not want the option of accepting monetary contributions.

² Va. Code § 22.1-176.1 permits school boards to enter into agreements to transport nonpublic school pupils. Local regulations should be established and consider arrangements relating to cost-sharing, fees, insurance, and liability. If school boards do not want to provide transportation for non-public students, it may remove this sentence.

Such use must be for a public purpose or other community use and is subject to the following limitations and requirements:

- Third-party logistics companies cannot use the school buses to provide transportation of passengers for compensation or for residential delivery of products for compensation;
- Each agreement must provide for reimbursing the School Board in full for the proportionate share of all costs, both fixed and variable, incurred by the School Board attributable to the use of such buses pursuant to the agreement;
- Each agreement must require the third-party logistics company, appropriating body, or agency to supply insurance on the school bus that meets the minimum requirements in Va. Code § 22.1-190, or, in the case of a governing body, the agreement must require the governing body to reimburse the School Board for the proportionate share of any insurance costs, both fixed and variable, incurred from the use of the school buses per the agreement; **and**
- The third-party logistics company, appropriating body, or state or federal agency, shall indemnify and hold harmless the School Board from any and all liability of by virtue of use of such buses pursuant to an agreement.

Adopted:

Legal Ref.: Code of Virginia, 1950, as amended, §§ 22.1-176, 22.1-176.1, 22.1-182, 22.1-190.

Cross Ref.:	EEAB	School Bus Safety and Routing
	EEAC	School Bus Safety Program
	IICA	Field Trips